

8	Herbas vs. Ean Holdings, LLC 2023-01360506	Motion to Dismiss Defendant Lauren A. Boisdore moves to dismiss plaintiff Alejandra Ortiz’s Complaint, for her failure to appear for her Court ordered deposition on January 16, 2026. “[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 496.) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” ’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992 (Doppes) (Footnote 5 omitted.)) Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 796.) Plaintiff violated the Court’s 12-30-25 Order compelling Plaintiff to appear for her deposition by no later than 1/30/26. (Canale Decl., ¶ 3, Ex. A; ROA 170.) Based on Plaintiff’s email stating Plaintiff was available on any day except 1/13/25, Defendant noticed Plaintiff’s deposition for 1/16/26. (Canale Decl., ¶¶ 4-5, Exs. B-C.) However,
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		Plaintiff failed to appear for her deposition. (Canale Decl., ¶ 6, Ex. D.) The moving party must not only show that there was violation of the court's order, but that such violation was willful. (Doppes, supra, 174 Cal.App.4th at 992.) Although Defendant has shown Plaintiff failed to comply with the Court's 12-30-25 Order, there is no showing that the violation was willful. Further, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate at this time. Tentative Ruling: Defendant's request for terminating sanctions is DENIED. <u>Sanctions:</u> Defendant requests sanctions in the amount of \$2,573.70 calculated as follows: \$300/hr. x. 6.4hrs.; plus \$60 filing fee and \$653.70 for a Certificate of Non-Appearance. The amount requested is excessive and is reduced to \$1,313.70 (\$300/hr. x 2hrs. + \$60 filing fee + \$653.70).] Tentative Ruling: Defendant's request for monetary sanctions is GRANTED in the reduced amount of \$1,313.70. Plaintiff is ORDERED to pay \$1,313.70 in monetary sanctions to Defendant within 20 days' notice of this ruling. Plaintiff is ORDERED to comply with the Court's 12-30-25 Order and appear for her deposition within 20 days' notice of this ruling. The Court warns Plaintiff that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions. Plaintiff to give notice.
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9	Huynh vs. Williams 2024-01436961	1. Motion for Reconsideration 2. Case Management Conference Parties have stipulated to continue the motion to 09/14/2026 at 1:45 pm in Department C15. The Case Management Conference is hereby also continued to 09/14/2026 at 1:45 pm in C15.
10	Jin and Yu, LLC vs. Pup Pup Hooray, LLC 2024-01418427	Motion for Judgment on the Pleadings Defendants Andy Atiyeh and Lannette Atiyeh move for Judgment on the Pleadings as to Plaintiff Jin and Yu, LLC's Complaint. Although Defendants Notice of Motion states that the Motion is supported by a concurrently filed Request for Judicial Notice, no Request for Judicial Notice was filed with the Court. (See ROA 178, 181, 184.) Defendants move for judgment on the pleadings pursuant to Code of Civil Procedure section 438. <u><i>Res Judicata and Collateral Estoppel</i></u> Defendants argue res judicata and collateral estoppel bar Plaintiffs claims. This court has ruled on Defendants' arguments based on collateral estoppel and res judicata twice before. First, on 2/3/25, in ruling on Defendants' Motion to Dismiss in which Defendant argued forum non conveniens, res judicata and collateral estoppel, the court treated the motion as a general demurrer and ruled that "Defendant has failed to show that either res judicata or collateral estoppel apply." (ROA 80.) Second, on 8/11/25, in ruling on Defendants' Demurrer in which Defendants again argued res judicata and collateral estoppel, the court once again rejected these arguments finding the court had already ruled on these arguments. (ROA 138.) This is the third time Defendants argue res judicata and collateral estoppel. Code of Civil Procedure section 438, subdivision (g) provides "The motion provided for in this section may be made even though either of the following conditions exist: (1) The moving